

SENATE BILL 866

By Stevens

AN ACT to amend Tennessee Code Annotated, Title 28,
relative to the dispute resolution process for
matters involving real property.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 28-3-202, is amended by deleting the section and substituting instead:

With the exception of actions brought pursuant to § 28-1-114(a), all actions, arbitrations, or other binding dispute resolution proceedings to recover damages for any deficiency in the design, planning, supervision, observation of construction, or construction of an improvement to real property, for injury to property, real or personal, arising out of any such deficiency, or for injury to the person or for wrongful death arising out of any such deficiency, must be brought against any person performing or furnishing the design, planning, supervision, observation of construction, or construction of the improvement within four (4) years after substantial completion of an improvement.

SECTION 2. This act takes effect on July 1, 2025, the public welfare requiring it.